

Date
{Today}

Referencie Nummer
{Reference Number}

RENTAL GUARANTEE (Enforcable at first request)

The issuer: ING Belgium, Société Anonyme, whose Head Office is 1000 – Brussels, avenue Marnix 24, ING Belgium - 1000 Brussels, hereinafter referred to as “the Bank”;

The “Lessee”: **Your contact details**

The “Landlord”: **Your landlord's contact details**

Reference is made to the Rental Agreement concluded on {Date of rental contract signing} between the Landlord and the Lessee, which terminates on {Rental contract expiration date} and relates to the rented property located at {Address of the rented building}. (hereinafter referred to as “the Rental Agreement”).

The due performance of the Lessee's commitments must be covered by a bank guarantee (hereinafter referred to as “the Rental Guarantee”).

Consequently, the Bank irrevocably undertakes, by order and on behalf of the Lessee, irrespective of the validity or legal consequences of the Rental Agreement, to pay, at the first request of the Landlord and without invoking any exceptions or objections pursuant to the aforementioned Rental Agreement, all amounts up to the extent of {Bank guarantee amount} maximum, upon remittance of a written request for payment to be made in the forms and within the deadlines stipulated below.

The Rental guarantee will be valid until **90 or 180** days after the date on which the Rental Agreement will have terminated for whatever reason and, in all cases, at the latest {Final due date}.

To be valid, the signed request for payment must be sent to us:

- either by registered letter;
 - or digitally with a qualified electronic signature (eID or certificate) from the Landlord;
- and must arrive at the Bank respectively at its address below or at its e-mail address bankguarantees@ing.be within the stipulated **90 or 180** days period and, at the latest, on the aforementioned expiry date stipulated in the aforementioned Rental Guarantee.

For the purpose of identification, a request for payment under this bank guarantee has to reach us through a banker and be accompanied by a statement of this banker confirming that the signatures on this request are legally binding your company.

The request for payment shall mention the amount of the call on the guarantee, and shall include a statement from the Landlord indicating that:

- the Rental Agreement is still valid or was terminated less than **90 or 180** days ago;
- the Tenant has not fulfilled his/her obligations stemming from the above-mentioned Rental Agreement;
- and, consequently, that the Landlord has suffered a loss corresponding to the amount he/she is claiming pursuant to the Rental guarantee.

The Bank will only take account of requests for payment compiled in the aforementioned forms and sent within the aforementioned deadlines, whose expiry will automatically signify the definite termination of the Rental Guarantee if no call has been made.

Any payment made pursuant to this Rental Guarantee will reduce the maximum amount of our guarantee to the extent of the amount paid.

Renewal of the Rental guarantee, in the event the Rental Agreement is contractually or legally extended, will be subject to the express approval of the Bank.

The Rental Guarantee is issued in favour of the Landlord and of his/her legal heirs, universal legatees or persons to receive a bequest, who have accepted the inheritance and, more generally, in favour of the universal assignees.

The Rental guarantee is assignable to the future acquirers of the property rented.

Such assignment will be enforceable against the Bank:

- in the event of assignment inter vivos, at the time of receipt by the Bank of a letter or an e-mail from the abovementioned address from the Assignor Landlord in which the latter will declare that the property rented, the Rental Agreement and the Rental Guarantee have been assigned and that only the new Landlord-beneficiary may, therefore, call on this guarantee henceforth. A copy certified by the notary public who compiled the official deed recording the assignment of the property (deed of sale, deed of donation, deed of transfer etc.) will be enclosed with such letter and the e-mail address of the new Landlord will be communicated;
- in the event of assignment through an individual legacy, upon production by the legatee of a recent original mortgage deed recording the registration of the title deed and communication of his e-mail address.

This Rental Guarantee may not be pledged, nor be the subject of any other form of collateral.

This Rental guarantee is governed by Belgian law.

In the event of dispute, solely the courts of Brussels will be competent.



All correspondence concerning this Rental Guarantee and any requests for payment must be addressed to ING Belgium S.A/N.V., Guarantees Department, Avenue Marnixlaan, 24, 1000 Brussels or by e-mail to bankguarantees@ing.be.

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